

Crl. Misc. No.69898-B of 2022

Muhammad Ijaz

The State etc.

29.12.2022 Ch. Babar Waheed, Advocate for the petitioner.
Mian Shakeel Ahmad, AAG, and Muhammad Akhlaq, DPG,
with Umar, CPO, Mahfooz, S.I., along with the record.
Mr. Ahmad Raza Mirza, Legal Advisor for SAMAA TV.

The petitioner-Muhammad Ijaz seeks post-arrest bail in case F.I.R. No.255/2022, dated 22.03.2022, registered under Section 302 PPC, at Police Station Eminabad, District Gujranwala.

2. Heard. Record perused.

3. In the instant case, the incident occurred on 22.03.2022 at 02:30 p.m. The matter was reported to the police against unknown accused persons at 06:40 p.m. for murdering Imran Masih. During the investigation, the petitioner was taken into custody under section 54 of Cr.P.C on 15.04.2022. Then he was lodged in jail for an identification parade, which took place on 28.04.2022 under the supervision of learned Judl. Magistrate Section-30, Gujranwala. The complainant-Adeel Masih had not identified the petitioner. At the same time, the prosecution witness, namely Boota Gori, identified the petitioner with his role. During the identification parade, the petitioner objected that he was exposed to the witness. Learned counsel for the petitioner submitted that the petitioner was exposed on the electronic media and introduced by not less a person than the C.P.O, Gujranwala, D.S.P Gujranwala, and the S.H.O as a culprit. The media made it more sensational by publicizing the entire episode. At this stage, this

Court requisitioned a report from the C.P.O, Gujranwala, and SAMAA TV. Today, the legal advisor of SAMAA TV appeared and submitted comments, which revealed that there is a WhatsApp group named PRO CPO Gujranwala. On 14.04.2022, the police authorities shared information about the suspect's arrest with the electronic and print media. The C.P.O, Gujranwala, disclosed the name of the accused during his interview. The legal advisor of SAMAA TV stated that the picture of the accused was provided to the reporters of SAMAA News by the P.R.O, Office, Gujranwala and the police officials did not inform him that the identification parade of the accused has not been conducted yet. In the instant case, now the accused tried to take advantage of the program aired by SAMAA News, wherein the picture of the petitioner was widely circulated. The police should not have exposed the identity of the accused through electronic media. The law lends assurance to the accused that the identity should not be exposed to the witnesses, particularly for the witness to identify the accused before the Magistrate. The C.P.O, Gujranwala present in court, stated that the investigating officer put a mask over the accused to conceal their identity and produced pictures. Besides, the images shown on the media reveal that a mask was not placed over the accused to hide his identity until he was put up for an identification parade. Making photographs of the accused publically, either by showing the same to the witness or by publicizing the same in any newspaper or program, would create doubt in the proceedings of the identification parade. The investigating officer has to ensure that there is no chance for the witness to see the accused before going to the identification parade. The accused should not be shown to the witness in person or

through any other mode, i.e., photograph, video-graph, or the press or electronic media. Given the reasons elaborated above, the case against the petitioner needs further probe and inquiry within the meanings of Section 497 (2) Cr.P.C.

4. For the reasons supra, the petition is accepted, and the petitioner is admitted to post-arrest bail subject to his furnishing bail bonds in the sum of Rs.3,00,000/- with one surety in the like amount to the satisfaction of the learned trial court.

5. Given the above, the matter is referred to R.P.O, Gujranwala, to probe into the matter and submit a detailed report before the Addl. Registrar (Judl.) of this Court. The Inspector General of Police, Punjab, is also directed to ensure that in the future police officers should not expose the identity of the suspects/accused persons arrested in any criminal case through the photograph, video-graph, the press or electronic media until the suspects/accused persons would put up for a test identification parade. Office is directed to transmit copy of instant order to the I.G. Punjab and R.P.O, Gujranwala for compliance.

6. These are the detailed reasons for allowing the instant bail petition.

(Aalia Neelum)
Judge

Approved for reporting

Judge

*Ikram**